

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 27-007

**Amendments to Title 5, Chapter 2 of the Chickasaw Nation Code
(Form of Action)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules for the courts of the Chickasaw Nation, and

WHEREAS, the Tribal Legislature desires to amend those rules.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapter 2 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red):

“SECTION 5-209.2 **ONE FORM OF ACTION.**

A. There shall be one (1) form of action to be known as a "civil action."

B. All petitions filed for the commencement of any action shall contain the following language:

“The party(ies) initiating this action, the attorney and attorney’s law firm are subject to Chickasaw law and administrative regulations as enforced in the judicial and administrative forums of the Chickasaw Nation during the litigation of this action.”

C. All responses filed in any action shall contain the following language:

“The party(ies) responding to this action, the attorney and attorney’s law firm are subject to Chickasaw law and administrative regulations as enforced in the judicial and administrative forums of the Chickasaw Nation during the litigation of this action.”

D. Failure to comply with either Subsection B or C above shall be justification for dismissal without prejudice upon the application of any properly admitted party or upon the Court’s own notice.”

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on August 20, 2010, by a vote of 13 ayes, 0 nays, 0 abstentions.

Holly Easterling
Chairperson
Chickasaw Tribal Legislature

Linda Biggs
Secretary
Chickasaw Tribal Legislature

Concur: Bill Anoatubby
Bill Anoatubby, Governor
The Chickasaw Nation

Date: AUG 20 2010

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Explanation: This resolution amends the rules of court to ensure that all parties, attorneys and their law firms are subject to Chickasaw law and administrative regulations as enforced in the judicial and administrative forums of the Chickasaw Nation during the litigation of their case.

The amendments are necessary due to a current case involving a non-Indian law firm and the Muskogee Creek Nation's courts and judges. The case may have a global effect not in the best interest of the Chickasaw Nation and it behooves the Chickasaw Nation to prepare in case of that event.

Presented By: Court Development Committee